

Operational Resilience

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1

Application and Definitions

1.1

Unless otherwise stated:

1. (1) other than Chapter 8, this Part applies to every `_firm_` that is a `_CRR firm_` ;
2. (2) Chapter 8 applies to every `_CRR consolidation entity_`.

1.2

In this Part, the following definitions shall apply:

`_external group end user_`

means a `_person_` who receives services and who is not a member of the `_CRR consolidation entity's_` `_consolidation group_`.

`_impact tolerance_`

means the maximum tolerable level of disruption for an `_important business service_` or an `_important group business service_` as measured by a length of time and any other relevant metrics.

`_important business service_`

means a service provided by a `_firm_` , or by another `_person_` on behalf of the `_firm_` , to another `_person_` which, if disrupted, could pose a risk to:

1. (1) where the `_firm_` is, or is controlled by, an `_O-SII_` , the stability of the `_UK_` financial system; or
2. (2) the `_firm's_` safety and soundness.

`_important group business service_`

means a service provided by a member of the `_CRR consolidation entity's_` `_consolidation group_` to an `_external group end user_` which, if disrupted, could pose a risk to:

1. (1) where any member of the `_CRR consolidation entity's_` `_consolidation group_` is an `_O-SII_` , the stability of the `_UK_` financial system; or
2. (2) the safety and soundness of any `_CRR firm_` within the `_CRR consolidation entity's_` `_consolidation group_`.

1.3

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2

Operational Resilience Requirements

2.1

A _firm_ must identify its _important business services._

2.2

A _firm_ must set an _impact tolerance_ for each of its _important business services._

2.3

The _impact tolerance_ set for each _important business service_ must specify the first point at which a disruption to the _important business service_ would pose a risk to:

1. (1) where the _firm_ is, or is controlled by, an _O-SII_ , the stability of the _UK_ financial system; or
2. (2) the _firm?s_ safety and soundness.

2.4

The _impact tolerance_ set for each _important business service_ must specify the length of or point in time, in addition to any other relevant metrics, for which a disruption to that _important business service_ can be tolerated.

2.5

A _firm_ must ensure it can remain within its _impact tolerance_ for each _important business service_ in the event of a severe but plausible disruption to its operations.

2.5A

Where a _firm_ is a member of a _group_, the _firm_ must ensure it accounts for any additional risks arising elsewhere within its _group_ that may affect the _firm?s_ ability to comply with 2.5.

2.6

A _firm_ must comply with 2.5 within a reasonable time of the rule coming into effect and in any event by no later than 31 March 2025.

3

Strategies, Processes and Systems

3.1

A _firm_ must have in place sound, effective and comprehensive strategies, processes and systems that enable it adequately to:

1. (1) identify its _important business services_ ;
2. (2) set an _impact tolerance_ for each _important business service_ ; and
3. (3) identify and address any risks to its ability to comply with the obligation under 2.5.

3.2

The strategies, processes and systems required by 3.1 must be proportionate to the nature, scale and complexity of the _firm?s_ activities.

4

Mapping

4.1

As part of its obligation under 3.1, a _firm_ must identify and document the necessary people, processes, technology, facilities and information required to deliver each of its _important business services_.

5

Scenario Testing

5.1

As part of its obligation under 3.1, a _firm_ must carry out regular scenario testing of its ability to remain within its _impact tolerance_ for each of its _important business services_ in the event of a severe but plausible disruption of its operations.

5.2

In carrying out the scenario testing required by 5.1, a _firm_ must identify an appropriate range of adverse circumstances of varying nature, severity and duration relevant to its business and risk profile and consider the risks to delivery of the _firm?s_ important business services_ in those circumstances.

5.3

The scenario testing required by 5.1 must be proportionate to the nature, scale and complexity of the _firm's_ activities.

6

Self-assessment

6.1

A _firm_ must prepare and regularly update a written self-assessment of its compliance with this Part.

6.2

The content and level of detail of a _firm?s_ written self-assessment must be proportionate to the nature, scale and complexity of the _firm?s_ activities, and where applicable to the activities of the _consolidation group_ of which the _firm_ is a member.

6.3

A _firm_ must maintain, and be able to provide to the _PRA_ on request, a current version of its written self-assessment, together with all versions produced during the preceding three years.

7

Governance

7.1

A _firm_ must ensure that its _management body_ approves the _important business services_ identified by the _firm_ in compliance with 2.1.

7.2

A _firm_ must ensure that its _management body_ approves the _impact tolerances_ set by the _firm_ in compliance with 2.2.

7.3

A _firm_ must ensure that its _management body_ approves and regularly reviews the self-assessment required by 6.1.

8

Group Arrangements

8.1

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8.2

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8.3

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8.4

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8.5

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8.6

A _CRR consolidation entity_ must identify each _important group business service_.

8.7

A _CRR consolidation entity_ must set an _impact tolerance_ for each _important group business service_.

8.8

A _CRR consolidation entity_ must assess whether each member of the _CRR consolidation entity's_ _consolidation group_ providing each _important group business service_ could remain within the _impact tolerance_ set for that _important group business service_ in the event of a severe but plausible disruption to its operations.

8.9

The _impact tolerance_ set for each _important group business service_ must specify the first point at which a disruption to the _important group business service_ would pose a risk to:

1. (1) where any member of the _CRR consolidation entity?s_ _consolidation group_ is an _O-SII_ , the stability of the _UK_ financial system; or
2. (2) the safety and soundness of any _CRR firm_ within the _CRR consolidation entity?s_ _consolidation group_.

8.10

The _impact tolerance_ set for each _important group business service_ must specify the length of or point in time, in addition to any other relevant metrics, for which a disruption to that _important group business service_ can be tolerated.

8.11

A _CRR consolidation entity_ must have in place sound, effective and comprehensive strategies, processes and systems that enable it adequately to:

1. (1) identify each _important group business service_ ;
2. (2) set an _impact tolerance_ for each _important group business service_ ; and
3. (3) assess whether each member of the _CRR consolidation entity?s_ _consolidation group_ providing each _important group business service_ could remain within the _impact tolerance_ set for that _important group business service_ in the event of a severe but plausible disruption to its operations.

8.12

A _CRR consolidation entity_ must ensure that its _management body_ approves:

1. (1) the _important group business services_ identified in compliance with this Chapter;
2. (2) the _impact tolerances_ set in compliance with this Chapter; and
3. (3) the assessment undertaken in compliance with this Chapter.

8.13

The strategies, processes and systems required by this Chapter must be proportionate to the nature, scale and complexity of the _consolidation group?s_ activities.

8.14

A _CRR consolidation entity_ must comply with 8.6 to 8.13 within a reasonable time of the rules coming into effect and in any event by no later than 30 June 2022.